

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2662
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 25, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 25-407.01, to read:

4 25-407.01. Parenting time hearings; domestic violence; abuse;
5 expert witness testimony; qualifications;
6 prohibition; applicability; definitions

7 A. IN ANY PARENTING TIME PROCEEDING IN WHICH A PARENT IS ALLEGED TO
8 HAVE COMMITTED DOMESTIC VIOLENCE OR ABUSE, THE COURT MAY TAKE TESTIMONY
9 FROM AN EXPERT WITNESS RELATING TO THE ALLEGED DOMESTIC VIOLENCE OR ABUSE
10 ONLY IF THE EXPERT WITNESS HAS DEMONSTRATED BOTH EXPERTISE AND CLINICAL
11 EXPERIENCE IN WORKING WITH VICTIMS OF DOMESTIC VIOLENCE OR ABUSE. [THE
12 EXPERTISE AND CLINICAL EXPERIENCE MAY NOT INCLUDE EXPERTISE AND EXPERIENCE
13 THAT IS GENERATED SOLELY FROM SERVING AS A COURT APPOINTEE IN A PARENTING
14 TIME PROCEEDING OR ANY RELATED COURT PROCEEDING.] THE DEMONSTRATED
15 EXPERTISE OF THE EXPERT WITNESS MAY NOT BE SOLELY OF A FORENSIC NATURE.

16 B. PSYCHOLOGICAL TESTING, PRINCIPLES, DIAGNOSES AND CONCEPTS THAT
17 MAY BE USED BY AN EXPERT WITNESS UNDER THIS SECTION ARE LIMITED TO
18 TESTING, PRINCIPLES, DIAGNOSES AND CONCEPTS THAT HAVE BEEN EMPIRICALLY
19 ESTABLISHED AND GENERALLY ACCEPTED AS VALID AND RELIABLE FOR THE
20 PARAMETERS AND CONDITIONS TESTED OR THE ISSUES EVALUATED.

21 C. THE COURT MAY NOT ALLOW EVIDENCE RELATING TO POLYGRAPH
22 EXAMINATIONS, VOICE-STRESS ANALYSIS OR OTHER PSYCHOLOGICAL MEASURES.

23 [D. SUBSECTION A OF THIS SECTION DOES NOT APPLY TO A LAW
24 ENFORCEMENT OFFICER WHO HAS EXPERIENCE AND TRAINING IN RECOGNIZING
25 DOMESTIC VIOLENCE OR ABUSE.]

26 [D.] [E.] FOR THE PURPOSES OF THIS SECTION:

27 1. "ABUSE" HAS THE SAME MEANING PRESCRIBED IN SECTION 8-201.

28 2. "DOMESTIC VIOLENCE" HAS THE SAME MEANING PRESCRIBED IN SECTION
29 13-3601.

1 3. "FORENSIC" MEANS ANY PROFESSIONAL ACTIVITY UNDERTAKEN PURSUANT
2 TO A COURT ORDER OR FOR USE IN LITIGATION, INCLUDING THE EVALUATION OR
3 TREATMENT OF A PARENT, CHILD OR OTHER INDIVIDUAL WHO IS INVOLVED IN A
4 PARENTING TIME PROCEEDING.

5 Enroll and engross to conform

6 Amend title to conform

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